**ASSIGNMENT AGREEMENT**

THIS ASSIGNMENT AGREEMENT ("Agreement") is made and entered into on this __ day of _____, 2016 ("Effective Date") by and between

_____, a company incorporated under the Companies Act, 1956 and having its registered office at _____, CIN No._____ (hereinafter referred to as the "**Assignor**", which expression shall unless repugnant to the context or meaning thereof include its successors and permitted assignees) of the FIRST PART;

**AND**

**BENNETT, COLEMAN AND COMPANY LIMITED**, a company incorporated under the Companies Act, 1956, having its registered office at The Times of India Building, Dr. D.N. Road, Mumbai 400 001, CIN No. U22120MH1913PLC000391 hereinafter referred to as the 'Assignee' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the ONE PART

Assignor and Assignee shall be collectively referred to as "**Parties**" and severally as "**Party**".

**WHEREAS:**

A. Assignor is engaged in the business of [insert];
B. Assignee is a prominent and is one of the leading Indian media company engaged in the business of printing, publication and marketing of newspapers, magazines and periodicals and also other non-print media such as radio, television, business solutions etc.;
C. Assignor is the proprietor of the Trademarks and Domain Names listed in Annexure A to this Agreement;
D. Assignor is desirous of assigning and Assignee is desirous of procuring the Trademarks and Domain Names from the Assignor
E. The Parties now wish to enter into this Agreement by virtue of which Assignor irrevocably, absolutely and perpetually assigns the Trademarks and Domain Names to Assignee.

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth in this Agreement, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereto agree as follows:

## 1. DEFINITIONS AND INTERPRETATION

1.1. In this Agreement, unless the context otherwise requires, the following words and expressions when used with initial capital letters shall have the meanings set forth below, subject to the qualifications, adjustments, exceptions and additional definitions set forth elsewhere in the Agreement:-

a. "**Agreement**" means this agreement including any Annexures hereto as may be amended or modified from time to time.

b. **"Domain Names"** shall mean the domain names mentioned under Annexure A which are being assigned under this Agreement.

c. "**Trademarks**" shall mean the marks mentioned under Annexure A which are being assigned under this Agreement.

1.2. Interpretation

Unless the context of this Agreement otherwise requires (i) words of any gender include each other gender; (ii) words using the singular or plural number also include the plural or singular number, respectively; (iii) the terms "hereof," "herein," "hereby" and derivative or similar words refer to this entire Agreement; (iv) whenever this Agreement refers to a number of days, such number shall refer to calendar days unless otherwise specified; (v) headings are used for convenience only and shall not affect the interpretation of this Agreement; and (vi) references to the Recitals, Clauses and Annexures shall be deemed to be a reference to the recitals, clauses and Annexures of this Agreement.

## 2. ASSIGNMENT

2.1. Assignor is the proprietor of the Domain Names/ Trademarks specified in **Annexure A** of this Agreement.

2.2. Assignor hereby, irrevocably and absolutely transfers and assigns to Assignee, in perpetuity and for worldwide territory, all rights (including but not limited to intellectual property rights by whatever name called), title, interest, ownership and benefits, whether now known or in future developed, in any manner or form, under any statute or under common law, in the Trademarks (which is being assigned together with the goodwill in such Trademarks) and the Domain Names (which is being assigned together with the goodwill in such Domain Names) and all the intellectual property (including but not limited to copyrights) subsisting in such Trademarks and Domain Names, free of all liens and encumbrances, together with the right to (i) give licenses, permissions and grants in connection therewith; (ii) make applications for same and the right to apply and prosecute them in any part of the world; (iii) right to obtain and hold appropriate registrations in respect of the same anywhere in the world, (iv) all extensions and renewals thereof, and (v) use, reproduce, amend the said Domain Names and Trademarks, including storing in any medium by electronic means, to make copies of the said Domain Names and Trademarks, to make any adaptation and derivatives of the said Domain Names and Trademarks and to exploit the said Domain Names and Trademarks in any form or under any media for any purposes whatsoever and (v) causes of action in the past, present or future, related thereto including the right to damages and profits, due or accrued, arising out of past, present or future infringements, passing off or violations thereof and the right to sue for and recover the same.

2.3. The Assignor further agrees not to claim any right, title, interest, ownership or benefit, in any manner or form, whether now known or in future developed, in relation to any word, mark or other intellectual property containing the word 'Times' as a prefix or suffix, unless otherwise agreed between the Parties. The Assignor further undertakes and agrees not to register in its name such word, mark or intellectual property (by whatever name called) directly or indirectly whether by itself, its subsidiaries, affiliates or shareholders unless specifically authorized by the Assignee.

2.4. Assignor also agrees that the exclusive ownership of all content in the Trademarks and Domain Names that is not protected under intellectual property laws shall be automatically and irrevocably transferred and assigned to Assignee from the date of creation.

2.5. The Assignor shall promptly execute and deliver to the Assignee or its legal representative any and all papers, documents, instruments, applications or affidavits required to apply for, obtain, secure, prosecute, maintain, enforce and protect the Trademarks and Domain Names, to record the assignment with various authorities/bodies, to more perfectly assuring the Trademarks and Domain Names unto Assignee and to bring on record the name of Assignee in any proceeding relating to Trademarks and Domain Names, which may be necessary or desirable to carry out the purposes hereof and to vest Assignee with full right, title and interest in the Trademarks and Domain Names. The Assignor shall render all possible assistance to the Assignee in obtaining such registration at the Assignee's cost, and shall do and perform, cause to be done or performed all such further acts, deeds, matters and things and execute all such

further deeds, documents, petitions, affidavits, declarations and other instruments from time to time necessary to vest the said Trademarks and Domain Names and the related rights in the Assignee.

2.6. Should the Assignor be unable to secure the signature on any document necessary for the purposes stated in the clause above, due to any cause, the Assignor hereby irrevocably designates and appoints the Assignee and each of its duly authorized officers and agents as the Assignor's agent and attorneys to do all lawfully permitted acts for the purposes stated in the clause above with the same force and effect as if executed and delivered by the Assignor.

2.7. From the Effective Date the Assignor or its employees, agents, contractors, successors or any person thereof shall not be entitled to and shall cease to make any use of or exploit any of the said Trademarks and Domain Names unless otherwise agreed to by the Parties..

## 3. CONSIDERATION

3.1. In lieu of assignment of the Trademarks and Domain Names to Assignee as per Clause 2 above, Assignee shall pay to Assignor an overall consideration of Rs._____ (Rupees _____), receipt whereof is hereby acknowledged by Assignor.

## 4. REPRESENTATIONS AND WARRANTIES OF ASSIGNOR

4.1. Assignor hereby represents, warrants and undertakes to Assignee that:

a. The Assignor has the sole, good, exclusive, valid, unencumbered and marketable title to the Trademarks and Domain Names. .

b. It has full right, power and authority to negotiate and sign this Agreement and grant the rights sought to be granted under this Agreement, and is under no obligation or disability, created by law of contract or otherwise, which would in any manner or to any extent prevent or restrict it from entering into and fully performing this Agreement.

c. It has not assigned any right to a third party nor in any manner encumbered, diminished or impaired any right relating to the Trademarks or Domain Names.

d. Subsequent to the Effective Date, the Assignee shall have a good and marketable title to the Trademarks and Domain Names.

## 5. REPRESENTATIONS AND WARRANTIES OF ASSIGNEE

5.1. Assignee hereby represents, warrants and undertakes to Assignor that:

a. It has full right, power and authority to negotiate and sign this Agreement, and is under no obligation or disability, created by law of contract or otherwise, which would in any manner or to any extent prevent or restrict it from entering into and fully performing this Agreement.

## 6. INDEMNITY

6.1. Assignor agrees to indemnify and hold harmless Assignee and its employees, officers, agents, franchisees and licensees, from any and all charges, claims, damages, costs, suits, judgments, decrees, losses, expenses (including reasonable legal fees), penalties, demands, liabilities and cause of action, of any kind or stature based upon, relating to, arising out of any or as a result of any breach of its obligations, representation or warranties under this Agreement.

## 7. LIMITATION OF LIABILITY

7.1. In no event shall the Parties be liable for any indirect, special, exemplary, incidental, consequential, punitive or tort damages resulting in loss of use, loss of data, loss of

profits or loss of business arising out of or in connection with this Agreement.

## 8. GOVERNING LAW AND DISPUTE RESOLUTION

8.1. This Agreement is governed by and is to be construed in accordance with the laws of the Republic of India. The Parties hereby agree that any disputes arising with respect to this Agreement shall be subject to the exclusive jurisdiction of the courts of law in Mumbai.

## 9. MISCELLANEOUS

9.1. Entire Agreement. This Agreement shall constitute the entire agreement between the Parties hereto relating to the subject matter thereof, and there are no oral statements, representations, warranties, undertakings or agreements between the Parties except as provided herein. This Agreement may not be amended or modified in any respect except by written instrument signed by the Parties hereto.

9.2. Waiver. It is expressly understood that if either Party on any occasion fails to perform any term of this Agreement or the other Party does not enforce that term, the failure to enforce on that occasion shall not prevent enforcement on any other occasion.

9.3. Severability. Each section of this Agreement is severable. If any provision is held unenforceable by a court of competent jurisdiction, such ruling shall not impair any other provision that remains intelligible and all other provisions shall continue in effect.

9.4. Relationship. The Parties hereby expressly agree that each Party shall not be deemed either directly or indirectly to be the employer, franchiser, contractor of the other or of the associates, representatives, staff/employees of the other Party and this Agreement has been executed expressly and solely on a principal to principal arrangement.

9.5. Notices. All notices, approvals, instructions and other communication given or made under this Agreement shall be in writing and may be given by electronic mail (email), facsimile, by personal delivery or by sending the same by pre-paid registered mail addressed to the relevant Party at its postal address or email address or fax number set out below:

9.5.1 In case of **Assignor**, notices and other communications may be addressed as follows:

Address :
Attention :
Telephone :
Facsimile :
Email :

9.5.2 In case of **Assignee**, notices and other communications may be addressed as follows:

Address :
Attention :
Telephone :
Facsimile :
Email :

In the absence of evidence of earlier receipt, any notice or other communications will be deemed to have been duly given:

(i) if delivered personally, when left at the address referred to in this Agreement;
(ii) if sent by mail other than air mail, 72 (seventy two) hours after posting it;
(iii) if sent by air mail, 5 (five) days after posting it;
(iv) if sent by fax, when confirmation of its transmission has been recorded on the sender's fax machine;
(v) If sent by e-mail, on the date on which the e-mail is sent.

The serving of notice in the manner set out herein above shall be considered adequate delivery to the Party on whom the notice is served.

9.6. Counterparts. This Agreement may be executed in counterparts, with each counterpart being considered as the original Agreement.

IN WITNESS WHEREOF, the Parties have caused their authorised representatives to execute this Agreement.

| | |
|---|---|
| **SIGNED** for and on behalf of **Assignor** | **SIGNED** for and on behalf of **Assignee** |
| _____<br>Name:<br>Title:<br><br>**Witnessed by**<br><br>Name:<br>Address: | _____<br>Name:<br>Title:<br><br>**Witnessed by**<br><br>Name:<br>Address: |

**ANNEXURE A**

**Trademarks/ Domain Names**